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County: los-angeles

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Case Number: 25STCV27777 Hearing Date: June 25, 2026 Dept: 307

__ TENTATIVE RULING 9:15 a.m., Thursday, June 25, 2026

BARBARA

MAHOMES v. UBER TECHNOLOGIES, INC., et al. [25STCV27777]

MOTION

TO COMPEL ARBITRATION OF DEFENDANTS UBER TECHNOLOGIES, INC., RASIER, LLC, and

RASIER-CA, LLC

NOTICE: WAIVED

Although the Moving

Defendants failed to account for the additional two court days added to the

notice period for electronic service, Plaintiff’s Opposition fails to raise the

notice defect. It is therefore waived.

TIMELINE:

Negligence action arising out of motor vehicle accident

10/7/2023: Plaintiff Barbara Mahomes

(“Plaintiff”) was traveling as a passenger in a rideshare vehicle operated by Defendant Uber Technologies, Inc. (“Uber Technologies”) and driven by Defendant Jose Lopez, Jr. (“Lopez”) when a car accident occurred involving Lopez’s vehicle. Defendant Rasier, LLC (“Rasier”) is a subsidiary of Uber Technologies and the parent company of Defendant Raiser-CA, LLC (“Rasier-CA”). Plaintiff alleges Lopez was acting as an agent for Uber Technologies, Rasier, and Rasier-CA (collectively “Uber” or “Moving Defendants”) at the time of the accident. Lopez’s vehicle was traveling westbound, while another driver was traveling eastbound on the same road. Plaintiff alleges both drivers were negligently operating their vehicles, causing a collision. As a result of the collision, Plaintiff sustained severe injuries.

9/22/2025: Plaintiff files the Complaint, alleging a single cause of action for negligence.

12/15/2025: Uber files a joint Answer to the Complaint.

5/28/2026: Uber files this Motion to Compel Arbitration, which is followed by Plaintiff’s Opposition (6/12/2026). As of 6/17/2026, no reply has been received.

TENTATIVE

RULING: MOTION TO COMPEL ARBITRATION OF DEFENDANTS UBER TECHNOLOGIES, INC., RASIER, LLC, and RASIER-CA, LLC is GRANTED.

MOTION TO COMPEL ARBITRATION

Uber seeks an order compelling Plaintiff to submit her claims to arbitration on the grounds that a written arbitration agreement exists which governs the claims asserted in Plaintiff's Complaint.

A.

Plaintiff

Can Be Bound to the Arbitration Agreement as a Third-Party Beneficiary and/or Under Principles of Equitable Estoppel

It is undisputed that the person who requested Plaintiff's rideshare on the day of the accident was non-party Makenna Powell (the "Account Holder"). On December 13, 2017, the Account Holder expressly agreed to Uber's then-existing Terms of Use. (Pare Decl., ¶ 9, Exhs. A, B.) Thereafter, the Account Holder further assented to Uber's updated Terms of Use by checking a consent box presented to the Account Holder through an in-app pop-up screen which displayed a link to the updated Terms of Use. (Id. ¶¶ 10-12, 14, Exhs. A, C, D.) Assent to the Terms of Use is a requirement for all Uber customers to use the Uber app and Uber's services. (Id. ¶ 6.) Moving Defendants argue that both the initial Terms of Use executed by the Account Holder and the Terms of Use in effect at the time of the underlying accident required any third party, including the Account Holder's third-party beneficiaries, to arbitrate claims against Uber where the "underlying claims arise out of or relate to [the Account Holder's] use of the Services." (Id. Exh. D, at § 2(a); see Exh. B.) Specifically, Section 2 of the operative Terms of Use (dated January 2023) states, in relevant part:

By agreeing to these Terms, you agree that you are required to resolve any claim that you may have against Uber on an individual basis in arbitration as set forth in this Arbitration Agreement… You and Uber are each waiving your right to a trial by jury.

(Id. Exh. D, at pp. 91-92.) The "Covered Disputes" section of Uber's Arbitration Agreement states:

[Y]ou and Uber agree that any dispute, claim, or controversy in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof; (ii) your access to or use of the Services at any time; (iii) incidents or accidents resulting in personal injury to you or anyone else that you allege occurred in connection with your use of the Services (including, but not limited to, your use of the Uber Marketplace Platform or the driver version of the Uber App), regardless whether the dispute, claim, or controversy occurred or accrued before or after the date you agreed to these Terms, and regardless whether you allege that the personal injury was experienced by you or anyone else; and (iv) your relationship with Uber, will be settled by binding individual arbitration between you and Uber, and not in a court of law…

(Id.

Exh. D, at p. 92, § 2(a)(1), bold emphasis added.) The “Application to Third Parties” section of Uber’s Arbitration Agreement states:

This

Arbitration Agreement shall be binding upon, and shall include any claims brought by or against any third parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims arise out of or relate to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties, those claims shall also be subject to this Arbitration Agreement.

(Id.

Exh. D, at p. 96, § 2(a)(5), bold emphasis added.)

Although Plaintiff did not directly sign or assent to the Arbitration Agreement in Uber's operative Terms of Use, Moving Defendants argue that Plaintiff is an intended third-party beneficiary of the Terms of Use because she received the benefit of Uber's services as conferred to her by the Account Holder. Plaintiff concedes that she was an "Uber passenger" in Lopez's vehicle at the time the accident occurred. (Compl., ¶¶ 32, 34; see Valinasab Decl., ¶ 2.) Plaintiff also repeatedly alleges that Lopez was driving the vehicle in the scope of his employment or agency for Uber. (Compl., ¶¶ 9-10, 26-28, 30, 36.) As Plaintiff's negligence claim arises out of her use of Uber's services as a beneficiary of the Account Holder, Uber contends that her claim necessarily arises from the Account Holder's use of Uber's services and Plaintiff's status as a third-party beneficiary, and thus, falls squarely within the scope of claims governed by Uber's Arbitration Agreement. (See Pare Decl., Exh. D, at § 2(a).)

Plaintiff does not dispute that Uber's Terms of Use are binding to the Account Holder, as she is the party who directly and repeatedly assented to Uber's Terms of Use through her use of the Uber app. (Pare Decl., ¶¶ 9-12, 15, Exhs. A, C, B, D.) Indeed, a federal Circuit Court found Uber's Terms of Use to be enforceable against Uber account holders under California law. (See Meyer v. Uber

Technologies, Inc. (2d Cir. 2017) 868 F.3d 66, 79 [holding "that the Uber App provided reasonably conspicuous notice of the Terms of Service as a matter of California law" and the account holder had unambiguously assented to the terms "in light of the objectively reasonable notice of the terms…"].) Instead, Plaintiff argues that she was merely a passenger who— although she rode in an Uber vehicle— did not order the ride, did not register an Uber account, and did not personally assent to any Uber terms and conditions by merely accepting an Uber ride from the Account Holder. (Opp., at p. 5.)

The Court

finds that the Arbitration Agreement here is enforceable against Plaintiff as a third-party beneficiary of the Account Holder's use of Uber's services. A non-signatory can be compelled to arbitrate where there was intent to benefit that third party under the contract. (Benasra

v. Marciano (2001) 92 Cal.App.4th 987, 991-993; Nguyen v. Tran

(2007) 157 Cal.App.4th 1032, 1036.) "Whether a nonsignatory is an intended third party beneficiary to the contract is determined from the parties' intent, as gleaned from the contract as a whole and the circumstances under which it arose." (Philadelphia Indemnity Ins. Co. v. SMG Holdings, Inc. (2019) 44 Cal.App.5th 834, 841.) For example, an individual may be said to be a third-party beneficiary of a given arbitration agreement where a "motivating purpose" behind the agreement was to help the individual or to extend contractual benefits to the individual. (Mahram v. The Kroger Co. (2024) 104 Cal.App.5th 303, 311.)

Here, the evidence plainly reflects that Plaintiff benefitted from the use of Uber's rideshare service when she accepted an Uber ride from the Account Holder and became a passenger in Lopez's vehicle. (Valinasab Decl., ¶ 2.) Further, the "Covered Disputes" section of Uber's Arbitration Agreement expressly states that claims arising out of accidents resulting in personal injury to either the Account Holder "or anyone else that [the Account Holder] allege[s] occurred in connection with [the Account Holder's] use of the Services … regardless [of] whether … the personal injury was experienced by [the Account Holder] or anyone else…" are governed by the agreement. (Pare Decl., Exh. D, at p. 92, § 2(a)(1), italics added.) The Arbitration Agreement goes on to explicitly bind claims brought "by or against any third parties, including … third party beneficiaries … where their underlying claims arise out of or relate to [the Account Holder's] use of the Services." (Id. Exh. D, at p. 96, § 2(a)(5).) By its express terms, Uber's Terms of Use are intended to benefit all end users of Uber's rideshare services through a given account holder, whether the end user is the account holder themselves or someone else using the account. In this case, the benefit received by Plaintiff when accepting the rideshare offered by the Account Holder was no different than the benefit conferred to the Account Holder herself when agreeing to the Terms of Use (i.e. the right to use Uber's rideshare service). Plaintiff's argument that non-account-holding passengers were not explicitly designated as a third-party beneficiary, like Apple, is unpersuasive given the above contract language. Therefore, the Court agrees that Plaintiff is a third-party beneficiary of the Arbitration Agreement.

Further,

multiple decisions from the California Superior Court have also enforced similar arbitration agreements in Uber's Terms of Use against non-signatory passengers using Uber's services. (See e.g. Fathollah v. Uber Techs., Inc.,

22STCV22014 (Superior

Ct., Los Angeles Cty., Sept. 30, 2022) [finding that the account holder's daughter could be compelled to arbitrate claims arising out of a vehicle collision as a third-party beneficiary]; Hilliard-McDaniel v. Uber Techs., Inc., 20STCV19410 (Superior Ct., Los Angeles Cty., December 23, 2021) [same]; Mitlo v. Uber Techs., Inc., 20STCV27091 (Superior Ct., Los Angeles, August 27, 2021) [same].) While these decisions are not binding, the Court finds the prior application of Uber's Arbitration Agreement to passengers or guests who accept the benefit of Uber's services from another Uber account holder to be persuasive here. Plaintiff does not submit any authority, whether binding or persuasive, that reaches a different conclusion.

Even if

Plaintiff was not a third-party beneficiary of the Arbitration Agreement, at minimum, the doctrine of equitable estoppel would apply here. “A nonsignatory is estopped from refusing to comply with an arbitration clause ‘when it receives a “direct benefit” from a contract containing an arbitration clause.’” (Boucher v. Alliance Title Co., Inc. (2005) 127 Cal.App.4th 262, 269.) “The equitable estoppel doctrine extends to claims that are dependent upon or inextricably intertwined with the obligations imposed by the contract containing the arbitration clause. As with signatory plaintiffs, when nonsignatory plaintiffs are pursuing such claims, they should be bound by the arbitration clause in the contract which is integral to their claims.” (JSM Tuscany, LLC v. Superior Court (2011) 193 Cal.App.4th 1222, 1241 (JSM Tuscany).)

Here,

although Plaintiff’s claim against Moving Defendants is framed in tort, the action itself fundamentally arises out of Plaintiff’s use of Uber’s services which would not have occurred but for the Account Holder’s use of the Uber app and Plaintiff’s acceptance of the rideshare benefit from the Account Holder and Uber. To reiterate, an Uber account holder’s assent to the Terms of Use, including the Arbitration Agreement, is a requirement for Uber customers to use the Uber app. (Pare Decl., ¶ 6.) There is no indication that Uber account holders are limited in sharing their access to the Uber service with passengers or guests other than the account holder themselves. To the contrary, the Arbitration Agreement expressly contemplates that other non-account-holder riders may use an Uber vehicle. As described above, Plaintiff's entire theory of negligence liability against Uber is dependent on her allegations that Plaintiff was using Uber's service when the accident occurred as the resulting benefit of the Account Holder's acceptance of Uber's operative Terms of Use. (Compl., ¶¶ 9-10, 26-28, 30, 32, 34, 36.) As Plaintiff's claim is inherently predicated on her use of the Account Holder's Uber account to arrange the ride that resulted in the underlying accident, the Arbitration Agreement between the Account Holder and Uber is integral to Plaintiff's negligence claim. Because Plaintiff's receipt of the benefit of Uber's services is "inextricably intertwined" with underlying negligence claim, equity compels the enforcement of the Arbitration Agreement against Plaintiff here. (JSM Tuscany, supra, 193 Cal.App.4th 1222, 1241.)

B.

Plaintiff

Has Not Overcome Her Burden of Demonstrating That The Arbitration Agreement is Unconscionable

The Court

finds that the Arbitration Agreement in Uber’s Terms of Use is not

unconscionable. For an arbitration agreement to be unconscionable, both

procedural and substantive unconscionability must be present. (Armendariz v.

Foundation Health¿Psychcare¿Services, Inc.¿(2000)

24 Cal.4th 83, 114 (Armendariz).) However, “‘the more substantively

oppressive the contract term, the less evidence of procedural¿unconscionability

is¿required¿to¿come

to the conclusion¿that the term is unenforceable,

and vice versa.’”

(Gatton v. T-Mobile USA, Inc. (2007) 152 Cal.App.4th 571, 579, quoting¿Armendariz, supra,¿24 Cal. 4th¿at¿114).

Procedural unconscionability involves oppression or surprise due to unequal

bargaining power,¿whereas¿substantive

unconscionability involves overly harsh or one-sided results. (Cook v. University

of Southern California ¿(2024) 102 Cal.App.5th 312,

320 (Cook).)

First,

Plaintiff argues that the Arbitration Agreement is procedurally unconscionable

because it is a contract of adhesion, imposed by the party with superior

bargaining power (here, Uber) on a take-it-or-leave-it basis. However, even to the extent that the Arbitration Agreement was a mandatory precondition of the

use of the Uber platform, “a compulsory predispute arbitration agreement is not¿rendered¿unenforceable

just because it is … offered on a ‘take

it or leave it’

basis.” (Thompson

v. Toll Dublin, LLC¿(2008) 165 Cal.App.4th 1360, 1372;¿accord Lagatree¿v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal. App. 4th 1105,

1127; see Morris v. Redwood Empire Bancorp (2005) 128 Cal.App.4th 1305,

1320¿[“Although adhesion contracts often

are procedurally oppressive, this is not always the case.”].)¿Standing

alone, the adhesive nature of the Arbitration Agreement as a precondition of

the use of Uber’s services does not render the agreement highly procedurally

unconscionable.

Second,

Plaintiff argues that the Arbitration Agreement is substantively unconscionable

because it lacks mutuality and the arbitration mandate is so oppressive that it

could not be within the reasonable expectations of Uber’s passengers. The Court

disagrees. The Arbitration Agreement expressly governs both the Account Holder

(and its beneficiaries) and Uber and is binding on any claims “brought by

or against” relevant third parties. (Pare Decl., Exh. D, at pp. 92, 96, §§ 2(a)(1),

(5).) Plaintiff fails to identify any claims that Uber might bring against Uber passengers which would unfairly be exempted from the Covered Disputes. Moreover, it is not beyond the bounds of reasonableness for the consumer to expect that, by using Uber's services, she may be bound to resolve disputes in a non-judicial forum. It cannot be said that the arbitration of disputes arising from the user of Uber's services creates such overly harsh or one-sided results so as to shock the conscience. (See Suh v. Superior Court (2010) 181 Cal.App.4th 1504, 1515.) Accordingly, the Court finds that Plaintiff has not demonstrated that the Arbitration Agreement is significantly substantively unconscionable, and thus, she fails to overcome her burden of demonstrating that the Arbitration Agreement is unenforceable against her.

Therefore,

Uber's Motion to Compel Arbitration is GRANTED. The action shall be stayed until the conclusion of arbitration

Defendants Uber Technologies, Inc., Rasier, LLC, and Rasier-CA, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR

emailed to counsel and

posted on court's website on 6/24/26 at 2:00